3277

Executive Order

CONCERNING A SALE TO BE CONDUCTED BY THE ALIEN PROPERTY CUSTODIAN PURSUANT TO THE "TRADING WITH THE ENEMY ACT" AND AMENDMENTS THEREOF.

By virtue of the authority vested in me by an "Act to define, regulate and punish trading with the enemy, and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918 and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919 and prior fiscal years on account of war expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, without public or other advertisement, at such time and place as to him, or to his authorized agent, may seem advisable that certain property hereinafter described, now being held and administered by him as such Alien Property Custodian and heretofore upon requirement and demand conveyed, transferred, assigned and delivered to him as the property of Hamburg-Amerikanische Packetfahrt Actien Gesellschaft (Hamburg-American Line), a foreign corporation organized under and pursuant to the laws of the former Empire of Germany, which said corporation he did, after investigation, determine to be an enemy within the purview of said Act as amended, which property is described as follows:

All and singular, the unexpired leasehold interests in and to all that certain wharf property, situated on the North River, in the Borough of Manhattan, City of New York, County and State of New York, designated as Pier New 65, near the foot of West 25th Street, together with the shed thereon erected, the bulkheads and lands and premises adjacent thereto, with the appurtenances and all the estate and rights thereunto belonging, as defined and created in and by three separate Indentures, two of which said Indentures are dated the 19th day of September, 1912, and the third or remaining one of said Indentures is dated the 11th day of March, 1914, made by and between The City of New York acting by the Commissioner of Docks, as party of the first part, and Hamburg-Amerikanische Packetfahrt Actien Gesellschaft (Hamburg-American Line), a foreign corporation organized under and pursuant to the laws of the former Empire of Germany, as party of the second part, wherein and whereby the said party of the first part leased and demised unto the said party of the second part for a term of years expiring on the 1st day of August, 1921, said property.

My reasons for the foregoing determination, order, rule and regulation are:

(*a*) That the said Indentures contain covenants by the said party of the second part against assigning or subletting the demised premises without the written consent of the said Commissioner of Docks;

(*b*) That the property described is not customarily sold and cannot usually be sold to advantage either at public sale after public or other advertisement or at the place where said demised property, or the greater portion thereof, is situated;

(*c*) That unnecessary expense, delay and inconvenience may be avoided.

Done in the District of Columbia this 21st day of May in the year of our Lord one thousand nine hundred and twenty, and of the independence of the United States the one hundred and forty-fourth.

WOODROW WILSON

THE WHITE HOUSE,
21 May, 1920.

[No. 3277.]